religious minorities—violate Article 44 of the Indian Constitution and have sowed the seeds of divisiveness between different communities; if we are all Hindus (albeit 'Hindu Muhammadans', 'Hindu Christians' and so on) why should we not all be subject to one civil code? Secular Congress leaders from Jawaharlal Nehru onwards have argued that while a Uniform Civil Code might be a desirable objective, it could only be adopted with the consent of the affected communities. This could not be obtained by pressure or by legal coercion; it required persuasion. Since minority leaders, especially Muslims, showed no inclination to be persuaded, seeing a uniform civil code as the imposition of majoritarian Hindu sensibilities, the idea needed to be deferred indefinitely, until the time was ripe. Hindutva leaders have long mocked this approach as caving in to minority prejudices; accepting Sharia law, they argue, violates the human rights principles of gender equality by discriminating against Muslim women and allows unelected and in some cases self-appointed religious personalities to interpret religious dictates and so 'lay down the law'. Could they now concede the permissibility of religious personal laws without losing credibility?

And would a Hindutva Constitution preserve the anomaly of Article 370, which grants a special status to the state of Jammu and Kashmir, to the extent that no law passed by the Parliament of India can apply to that state without being also passed by the Assembly of Jammu and Kashmir? Would the advocates of Hindutva allow the state to continue to restrict land-holding to 'state subjects', a status a woman would lose if she married a man from outside the state?

India's constitutionalists have long argued that it is a living document, susceptible to amendment in keeping with the evolving demands of time, subject of course to judicial interpretation, which has decreed that its 'basic structure' cannot be tampered with. Would transforming an egalitarian and secular Constitution into a document infused with the principles of Hindutva not violate its basic structure? And yet, can the advocates of Hindutva—the intellectual legatees of Savarkar, Golwakar and Upadhyaya—afford not to try?

A TRAVESTY OF HINDUISM